

# UPSC AND SPSC

ARTICLES 315-323 | MERIT + REPRESENTATION + PROCEDURAL FAIRNESS

POLITY 28

01

## CONCEPT + EVOLUTION

1853 competitive turn -> 1919 provision ->  
first PSC, 1 Oct 1926 -> 1935 federal design  
-> Constitution, 26 Jan 1950

PSC protects recruitment process;  
government owns posts, rules and  
appointment; courts review legality.

Firewall: UPSC/SPSC/Joint PSC != SSC !=  
statutory recruitment boards.

STAGE 01 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

02

## ARTICLE 315 FEDERAL FORMS

### ARTICLE 315

315(1) Union + State baseline

315(2)-(3) State resolutions -> parliamentary  
law -> Joint PSC

315(4) Governor request + President approval  
+ UPSC agreement

320(2) separate joint recruitment scheme for  
specially qualified services

STAGE 02 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

03

## ARTICLE 316: PEOPLE + TERM

APPOINT: President -> UPSC/Joint | Governor -> SPSC

EXPERIENCE: as nearly as may be half with >=10 years government office

TERM: six years or age ceiling: UPSC 65 | SPSC 62 | JOINT 62

ACTING: 15th Amendment 1963 | AGE: 41st Amendment 1976 | no same-office  
reappointment

STAGE 03 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

TERM: six years or age ceiling: UPSC 65 | SPSC 62 | JOINT 62

ACTING: 15th Amendment 1963 | AGE: 41st Amendment 1976 | no same-office reappointment

STAGE 03 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

## ARTICLE 317: REMOVAL

Misbehaviour -> President reference -> Supreme Court inquiry -> report -> President order

Direct grounds: insolvency | paid outside work | qualifying infirmity

Pending reference: President suspends UPSC/Joint | Governor suspends SPSC

Mehar Singh Saini (2010): proved manipulation/integrity failure justified removal finding

STAGE 04 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

## INDEPENDENCE PACKAGE

318: member/staff regulations + no disadvantageous variation

319: exact post-office progressions; UPSC Chair has strictest bar

322: UPSC -> Consolidated Fund of India | SPSC -> State Consolidated Fund

Limits: executive entry, vacancies, staff dependence, vendors, delay, weak report scrutiny

STAGE 05 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

## ARTICLE 320: EXAMS + AIS

Government/DoPT: posts + Article 309 rules + roster + cadre

UPSC/SPSC: assigned examination/selection + consultation

Government: service allocation + appointment + training/cadre management

AIS interface: UPSC examination; Article 312/AIS law governs the services

STAGE 06 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

## CONSULTATION CATALOGUE

07

## CONSULTATION CATALOGUE

|   |                                                             |
|---|-------------------------------------------------------------|
| A | (a) recruitment methods                                     |
| B | (b) appointment/promotion/transfer principles + suitability |
| C | (c) discipline + memorials/petitions                        |
| D | (d) official-duty legal costs                               |
| E | (e) injury pensions                                         |

STAGE 07 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

08

## EXCLUSIONS + LATERAL ENTRY

320(4): no required consultation on Article 16(4) manner or Article 335 claims; PSC still applies reservation rules.

Proviso: President/Governor exemption regulations -> legislature.

15 Mar 2024 Union amendment is post/method-specific, not universal lateral-entry exemption.

Test: post -> rules -> method -> equality/reservation -> consultation -> transparent appointment.

STAGE 08 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

09

## ARTICLES 321 + 323

321: legislation may extend functions to services/local authority/body corporate/public institution.

323: annual report -> President/Governor -> legislature + rejected-advice cases + reasons.

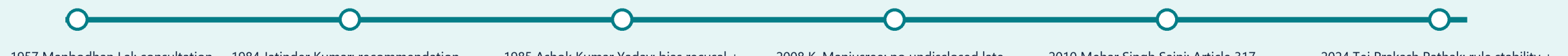
Advice is generally non-binding, but rejection becomes visible and reviewable.

Joint PSC reports separately for each served State.

STAGE 09 | CLAIM -> EVIDENCE -> ANALYSIS -> QUALIFICATION

10

## CASE-LAW CONTROL



10

## CASE-LAW CONTROL

1957 Manbodhan Lal: consultation directory; non-consultation alone not ~~data~~ 1984 Jatinder Kumar: recommendation ~~data~~ not compel appointment 1985 Ashok Kumar Yadav: bias recusal + interview safeguards 2008 K. Manjusree: no undisclosed late criterion 2010 Mehar Singh Saini: Article 317 integrity inquiry 2024 Tej Prakash Pathak: rule stability + non-arbitrariness

STAGE 10 | CLAIM -&gt; EVIDENCE -&gt; ANALYSIS -&gt; QUALIFICATION

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## INTEGRITY + REFORM

question creation -&gt; custody -&gt; centre/CBT -&gt; identity -&gt; audit logs -&gt; incident report -&gt; reasoned remedy

2024 central law: UPSC/listed central exams; check separate SPSC legal coverage.

Reform: transparent member criteria | timely vacancies | professional staff | recusal | secure vendors | grievance timelines

STAGE 11 | CLAIM -&gt; EVIDENCE -&gt; ANALYSIS -&gt; QUALIFICATION

12

## TRAPS + ANSWER SPINE

TRAPS: Governor appoints SPSC/President removes | UPSC 65 vs SPSC+Joint 62 | advice != appointment | SSC != PSC

ANSWER: define -&gt; exact Article/actor -&gt; claim -&gt; named evidence -&gt; analysis -&gt; qualification -&gt; reform

VERDICT: independent + capable + representative + transparent + correctable recruitment earns trust.

STAGE 12 | CLAIM -&gt; EVIDENCE -&gt; ANALYSIS -&gt; QUALIFICATION